

Mutual Non-Disclosure Agreement

Protects confidential information exchanged between two parties

1. PARTIES AND EFFECTIVE DATE

Party A (legal name)

Party B (legal name)

Party A address

Party B address

Effective date

Purpose of the disclosure (e.g. evaluating a partnership)

2. CONFIDENTIAL INFORMATION

"Confidential Information" means any non-public business, technical or financial information disclosed by either party (the "Disclosing Party") to the other (the "Receiving Party"), whether marked as confidential or reasonably understood to be so, including products, plans, customers, pricing, code, designs and know-how. It does not include information that is or becomes public through no fault of the Receiving Party, was already known to it, is independently developed, or is lawfully received from a third party.

3. OBLIGATIONS

The Receiving Party will use Confidential Information only for the Purpose, will protect it with at least the care it uses for its own confidential information and no less than reasonable care, and will disclose it only to employees, contractors and advisers who need to know it and are bound by obligations at least as protective as these. The Receiving Party will notify the Disclosing Party promptly of any unauthorised use or disclosure.

4. COMPELLED DISCLOSURE

If the Receiving Party is required by law or court order to disclose Confidential Information, it will give the Disclosing Party prompt notice (where lawful) so that the Disclosing Party may seek protection, and will disclose only what is legally required.

5. TERM

This Agreement lasts for year(s) from the Effective Date. The confidentiality obligations survive for

year(s) after it ends; obligations for trade secrets survive as long as they remain trade secrets.

6. RETURN OF MATERIALS, REMEDIES AND GENERAL TERMS

On request or when this Agreement ends, the Receiving Party will return or destroy all Confidential Information. Each party acknowledges that a breach may cause irreparable harm for which damages are not an adequate remedy, so the Disclosing Party may seek injunctive relief in addition to other remedies. Nothing in this Agreement grants any licence or obliges either party to enter into any further agreement. This Agreement is the entire agreement on its subject and may only be changed in writing signed by both parties.

Governing state / country

Courts with jurisdiction

This is a general template provided for convenience. It is not legal advice. Laws differ by state and country; have the completed document reviewed by a qualified professional before relying on it.

SIGNATURES**Party A**

Signature

Printed name

Date

Party B

Signature

Printed name

Date

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